

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

-----X
NATALIE ALLEN and TRINITY JEFFRIES.

SUMMONS

Plaintiffs,

Plaintiffs designate
KINGS County as the
place of trial.

-against-

THE CITY OF NEW YORK, P.O. JEREMY KOSTOLNI
(Shield No. 7797), P.O. CHRISTOPHER WALSH
(Shield No. 23571), SGT. TARA MANNIX
(Shield No. 15972) and JOHN DOE "1" through
"5",

The basis of venue
is: where the Tort
arose

The Tort arose in:
KINGS COUNTY, State
of New York

Defendants.
-----X

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: JAMAICA, NEW YORK
SEPTEMBER 15, 2020


KAREEM R. VESSUP
THE LAW OFFICE OF KAREEM R. VESSUP
ESQ.
Attorneys for Plaintiff
NATALIE ALLEN and TRINITY JEFFRIES
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TO: **The City of New York**
c/o NYC Law Department

100 Church Street
New York, NY 10007

P.O. Jeremy Kostolni
NYPD 75th Precinct.
1000 Sutter Ave.
Brooklyn, NY 11208

P.O. Christopher Walsh
NYPD 75th Precinct.
1000 Sutter Ave.
Brooklyn, NY 11208

Sgt. Tara Mannix
NYPD 75th Precinct.
1000 Sutter Ave.
Brooklyn, NY 11208

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
NATALIE ALLEN AND TRINITY JEFFRIES.

Plaintiffs,

Index No.:

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, P.O. JEREMY KOSTOLNI
(Shield No. 7797), P.O. CHRISTOPHER WALSH
(Shield No. 23571), SGT. TARA MANNIX
(Shield No. 15972) and JOHN DOE "1" through
"5",

Defendants.

-----X

Plaintiffs **NATALIE ALLEN** and **TRINITY JEFFRIES** by their
attorneys THE LAW OFFICE OF KAREEM R. VESSUP ESQ., complaining of
the Defendants, respectfully allege upon information and belief,
as follows:

1. At all times herein mentioned, Plaintiff **NATALIE ALLEN**
was and still is a resident of the County of Kings, City and State
of New York.

2. At all times herein mentioned, Plaintiff **TRINITY JEFFRIES**
was and still is a resident of the County of Kings, City and State
of New York.

3. At all times herein mentioned, Defendant, **THE CITY OF NEW
YORK** was, and still is a municipal corporation duly organized
existing by virtue of the laws of the State of New York.

4. Upon information and belief, at all times herein
mentioned, **Defendants P.O. JEREMY KOSTOLNI (Shield No. 7797), P.O.**

CHRISTOPHER WALSH (Shield No. 23571), SGT. TARA MANNIX (Shield No. 15972) and JOHN DOE "1" through "5" were and are police officers and/or Detectives of the Defendant **THE CITY OF NEW YORK**, and at all times herein were acting in such capacity as the agents, servants and/or employees of the Defendant, **THE CITY OF NEW YORK**.

5. Upon information and belief, at all times herein mentioned, Defendants P.O. JEREMY KOSTOLNI (Shield No. 7797), P.O. CHRISTOPHER WALSH (Shield No. 23571), SGT. TARA MANNIX (Shield No. 15972) and JOHN DOE "1" through "5" encountered Plaintiffs during the performance of their duties as Officers and/or Detectives of Defendant **THE CITY OF NEW YORK**.

BACKGROUND FACTS

6. On July 4, 2019 approximately 25 members of the New York Police Department's 75th Precinct, including the individually named Defendants herein, descended upon the block of Miller Avenue between New Lots and Hegeman Avenues in Brooklyn, NY.

7. Upon arriving on the block, these members of the NYPD began to demand that individuals on the block disperse, these individuals included people who were present attending parties as well as people who lived on the block.

8. On July 4, 2019, Plaintiffs lived on Miller Avenue and were present on the block when the aforementioned members of the New York City Police Department arrived and started demanding that individuals disperse. At no time did the NYPD officers give the

reason they were demanding that individuals disperse.

9. Plaintiffs were lawfully present on the block standing in front of the building where they lived. They were amongst the individuals that the Defendants were seeking to disperse who resided on the block in question.

10. Upon information and belief, Defendants **THE CITY OF NEW YORK** and their agents, servants, and employees, including the individually named Defendants herein, had no legal right to demand that Plaintiffs disperse.

11. During Defendants' attempts to clear individuals from the block, Plaintiffs told Defendants that they lived in the immediate area and wanted to enter their apartment building.

12. Upon information and belief, Defendants **THE CITY OF NEW YORK** and their agents, servants and employees including the individually named Defendants herein, refused to allow Plaintiffs to enter their home.

13. Upon information and belief, while Plaintiff **NATALIE ALLEN** was discussing the matter with one of the NYPD Officers, a second officer grabbed Plaintiff and started physically assaulting her by punching, shoving, kicking her about her body in an effort to cause her harm.

14. Upon information and belief, Plaintiff **TRINITY JEFFRIES** began to protest the conduct of the NYPD when they saw the manner in which her mother, **NATALIE ALLEN**, was being treated.

15. Plaintiff, **NATALIE ALLEN**, was arrested for Resisting

Arrest, Obstructing Governmental Administration and Disorderly Conduct on July 4, 2019.

16. Plaintiff, **TRINITY JEFFRIES**, was also arrested on July 4, 2019 and was given a Desk Appearance Ticket charging her with Disorderly Conduct.

17. Neither Plaintiff had committed any crimes on the date of this incident.

18. Plaintiff **NATALIE ALLEN** was prosecuted in Kings County Criminal Court under docket number CR-025450-19KN.

19. That prosecution continued until early 2020 when the case was resolved with an Adjournment in Contemplation of Dismissal.

20. Plaintiff **TRINITY JEFFRIES** was prosecuted in New York City Criminal Court under Summons No. 4444976289.

21. That prosecution continued until the case was dismissed in late 2019.

AS AND FOR A FIRST CAUSE OF ACTION

22. Plaintiffs repeat, reiterate, and reallege each of the allegations provided in Paragraphs "1" through "21" with the same force and effect as if restated herein.

23. That on July 4, 2019 at approximately 11:30pm at or near 729 Miller Avenue in Brooklyn, NY Defendants jointly and severally in their capacity as police officers, without any warrant or any other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiffs **NATALIE ALLEN** and **TRINITY**

JEFFRIES.

24. Defendants restrained Plaintiff(s) **NATALIE ALLEN** and **TRINITY JEFFRIES**, interfered with their liberties, and took them into custody without the proper authority to the 75th Precinct in Kings County and there charged Plaintiffs with various crimes under Criminal Docket #:CR-025450-19KN and Summons No. 4444976289 respectively.

25. At no time did either Plaintiff consent to the unlawful conduct of the Defendants.

26. Defendants' conduct was not privileged or otherwise protected by law.

27. As a result of Defendants' conduct Plaintiffs were damaged.

AS AND FOR A SECOND CAUSE OF ACTION

28. Plaintiffs repeat, reiterate, and reallege each of the allegations provided in Paragraphs "1" through "27" with the same force and effect as if restated herein.

29. That on July 4, 2019 at approximately 11:30pm at or near 729 Miller Avenue in Brooklyn, NY Defendants jointly and severally in their capacity as police officers, did commit an assault upon Plaintiffs **NATALIE ALLEN** and **TRINITIY JEFFRIES** by approaching them with outstretched arms, weapons and handcuffs thereby intentionally creating a reasonable apprehension of an imminent harmful or offensive contact.

30. Plaintiffs experienced a reasonable apprehension of a harmful or offensive contact as a result of Defendants' conduct.

31. At no time did either Plaintiff consent to the unlawful conduct of the Defendants.

32. Defendants' conduct was not privileged or otherwise protected by law.

33. As a result of Defendants' conduct Plaintiffs were damaged.

AS AND FOR A THIRD CAUSE OF ACTION

34. Plaintiffs repeat, reiterate, and reallege each of the allegations provided in Paragraphs "1" through "33" with the same force and effect as if restated herein.

35. That on July 4, 2019 at approximately 11:30pm at or near 729 Miller Avenue in Brooklyn, NY Defendants jointly and severally in their capacity as police officers committed a harmful or offensive touching upon Plaintiffs **NATALIE ALLEN** and **TRINITY JEFFRIES** by physically assaulting them, pushing, shoving, punching, kicking, and/or ultimately arresting them.

36. At no time did either Plaintiff consent to the unlawful conduct of the Defendants.

37. Defendants' conduct was not privileged or otherwise protected by law.

38. As a result of Defendants' conduct Plaintiffs were damaged.

AS AND FOR A FOURTH CAUSE OF ACTION

39. Plaintiffs repeat, reiterate, and reallege each of the allegations provided in Paragraphs "1" through "38" with the same force and effect as if restated herein.

40. In relevant part, 42 United States Code, Section 1985(3) provides that, *"If two or more persons in any State or Territory conspire... for the purpose of depriving, either directly or indirectly, any person... of the equal protection of the laws, or of equal privileges and immunities under the laws...; in any case of conspiracy set forth in this section, if one or more persons engaged therein do, or cause to be done, any act in furtherance of the object of such conspiracy, whereby another is injured in his person or property, or deprived of having and exercising any right or privilege of a citizen of the United States, the party so injured or deprived may have action for the recovery of damages occasioned by such injury or deprivation, against any one or more of the conspirators."*

41. That on July 4, 2019 at approximately 11:30pm at or near 729 Miller Avenue in Brooklyn, NY Defendants jointly and severally in their capacity as police officers conspired to directly violate Plaintiffs' Federal Constitutional and Statutory rights, as enumerated above, by virtue of their cooperative effort to assault, batter, and falsely arrest them without legal authority or consent.

42. That on July 4, 2019 at approximately 11:30pm at or near

729 Miller Avenue in Brooklyn, NY Defendants jointly and severally in their capacity as police officers furthered the conspiracy by actually assaulting, battering, and falsely arresting Plaintiffs without legal authority or consent.

43. As a result of the Defendant's conduct Plaintiffs suffered deprivations of their rights guaranteed by the United States Constitution, the laws of the United States and the State of New York.

44. As a result of the Defendants unlawful conduct Plaintiffs were damaged.

AS AND FOR A FIFTH CAUSE OF ACTION

45. Plaintiffs repeat, reiterate, and reallege each of the allegations provided in Paragraphs "1" through "44" with the same force and effect as if restated herein.

46. 42 U.S.C. § 1986 provides in relevant part: ***"Every person who, having knowledge that any of the wrongs conspired to be done, and mentioned in section 1985 of this title, are about to be committed, and having power to prevent or aid in preventing the commission of the same, neglects or refuses so to do, if such wrongful act be committed, shall be liable to the party injured, or his legal representatives, for all damages caused by such wrongful act, which such person by reasonable diligence could have prevented.."***

47. That on July 4, 2019 at approximately 11:30pm at or near

729 Miller Avenue in Brooklyn, NY no Defendant, **P.O. JEREMY KOSTOLNI (Shield No. 7797)**, **P.O. CHRISTOPHER WALSH (Shield No. 23571)**, **SGT. TARA MANNIX (Shield No. 15972)** and **JOHN DOE "1" through "5"** prevented or stopped one another from assaulting, battering, or falsely arresting Plaintiffs without legal authority or consent.

AS AND FOR A SIXTH CAUSE OF ACTION

48. Plaintiffs repeats, reiterates, and realleges each of the allegations provided in Paragraphs "1" through "47" with the same force and effect as if restated herein.

49. That on July 4, 2019 at approximately 11:30pm at or near 729 Miller Avenue in Brooklyn, NY Defendants jointly and severally in their capacity as police officers initiated a criminal prosecution against Plaintiff **TRINITY JEFFRIES** by issuing her a criminal summons requiring her to appear in New York City Criminal Court.

50. Said criminal prosecution was initiated without the required probable cause.

51. Said prosecution was initiated with malice.

52. Said prosecution continued until late 2019 when all charges against Plaintiff were dismissed.

53. At no time did Plaintiff consent to the unlawful conduct of the Defendants.

54. Defendants' conduct was not privileged or otherwise protected by law.

55. As a result of Defendants' conduct Plaintiff was damaged.

AS AND FOR A SEVENTH CAUSE OF ACTION

56. Plaintiffs repeats, reiterates, and realleges each of the allegations provided in Paragraphs "1" through "55" with the same force and effect as if restated herein.

57. Plaintiffs bring this cause of action pursuant to 42 USC § 1983.

58. That on July 4, 2019 at approximately 11:30pm at or near 729 Miller Avenue in Brooklyn, NY Defendants jointly and severally in their capacity as police officers falsely arrested Plaintiffs.

59. That on July 4, 2019 at approximately 11:30pm at or near 729 Miller Avenue in Brooklyn, NY Defendants jointly and severally in their capacity as police officers civilly assaulted Plaintiffs.

60. That on July 4, 2019 at approximately 11:30pm at or near 729 Miller Avenue in Brooklyn, NY Defendants jointly and severally in their capacity as police officers committed a battery upon Plaintiffs.

61. The afore-described actions of the Defendants resulted in the Plaintiffs being deprived of the following rights under the United States Constitution:

- i. Freedom from assault to their person;
- ii. Freedom from battery to their person;
- iii. Freedom from false arrest;
- iv. Freedom from malicious prosecution;

v. Freedom from being subjected to excessive use of force.

62. Plaintiffs in no way consented to the conduct of Defendants.

63. The afore-described conduct of the Defendants was not privileged or otherwise protected by law.

64. As a result of Defendants' conduct Plaintiffs were damaged.

AS AND FOR AN EIGHTH CAUSE OF ACTION

65. Plaintiffs repeats, reiterates, and realleges each of the allegations provided in Paragraphs "1" through "64" with the same force and effect as if restated herein.

66. Defendants, jointly and severally, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of **THE CITY OF NEW YORK** and/or NYPD that is forbidden by the United States Constitution.

67. The aforementioned customs, policies, usages, practices, procedures and rules of **THE CITY OF NEW YORK** and/or the NYPD included, but were not limited to, arresting citizens without probable cause, manufacturing evidence and/or engaging in falsification in an effort to secure convictions and achieve ulterior motives like overtime compensation.

68. Additionally, **THE CITY OF NEW YORK** engaged in a policy, custom or practice of inadequate screening, hiring, retaining,

training and supervising its police officers and detectives that was the driving force behind the violation of Plaintiffs' rights as described herein.

69. By failing to properly recruit, screen, train, discipline and supervise its officers, including the individually named Defendants herein, **THE CITY OF NEW YORK** has tacitly authorized, ratified, sanctioned and/or impliedly authorized Defendants' acts complained of herein.

70. The foregoing customs, policies, usages, practices, procedures and rules of **THE CITY OF NEW YORK** and the NYPD constituted deliberate indifference to the safety, well-being and constitutional rights of Plaintiffs **NATALIE ALLEN and TRINITY JEFFRIES**.

71. The foregoing customs, policies, usages, practices, procedures and rules of **THE CITY OF NEW YORK** and the NYPD were the direct and proximate cause of the constitutional violations suffered by Plaintiffs **NATALIE ALLEN and TRINITY JEFFRIES** as alleged herein.

72. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating Plaintiffs constitutional rights.

73. All of the foregoing acts by Defendants deprived Plaintiffs of federally protected rights, including, but not limited to, the right:

- i. Not to be deprived of liberty without due process of law;
- ii. To be free from false arrest;

- iii. To be free from unreasonable and unlawful searches;
- iv. To be free from malicious prosecution;
- v. To be free from unlawful warrantless detention and arrest.

74. As a result of the foregoing, Plaintiffs **NATALIE ALLEN and TRINITY JEFFRIES** are entitled to compensatory damages in an amount to be fixed by a jury.

AS AND FOR A NINTH CAUSE OF ACTION

75. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "74" with full force and effect as if fully set forth herein.

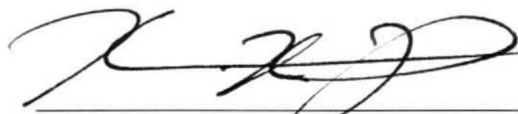
76. Defendant **THE CITY OF NEW YORK** is vicariously liable for the acts of its employees and agents who were on duty and acting within the scope of their employment when they engaged in the wrongful conduct described herein.

77. As a result of afore-described conduct of the Defendants, Plaintiffs **NATALIE ALLEN and TRINITY JEFFRIES**, are entitled to compensatory damages in an amount to be fixed by a jury, and are further entitled to punitive damages against the individual Defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

WHEREFORE, Plaintiff RONALD E. BARNES demands judgment and prays for the following relief, jointly and severally, against the Defendants:

- a. full and fair compensatory damages in an amount to be determined by a jury;
- b. punitive damages against the individual Defendant in an amount to be determined by a jury;
- c. reasonable attorney's fees and the costs and disbursements of this action; and
- d. such other and further relief as appears just and proper.

Dated: JAMAICA, NEW YORK
SEPTEMBER 15, 2020



Kareem R. Vessup
THE LAW OFFICE OF KAREEM R. VESSUP
ESQ.

Attorney for Plaintiffs
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(718) 219-8744 - P
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ATTORNEY VERIFICATION

KAREEM R. VESSUP, an attorney duly licensed to practice before the Courts of this State affirms the following pursuant to CPLR §2016 and under the penalty of perjury:

That affirmant is the attorney for the Plaintiffs in the action within; that affirmant has read the foregoing

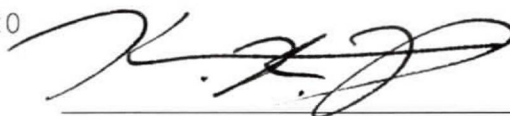
COMPLAINT

and knows the contents thereof; that the same is true to affirmant's own knowledge except as to the matters therein stated to be alleged upon information and belief, and as to those matters affirmant believes them to be true.

The reason that this verification is not made by plaintiffs and is made by affirmant is that plaintiffs are not presently in the county where the attorneys for the plaintiffs has its office.

Affirmant further says that the source of affirmant's information and the grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are from investigations made on behalf of said plaintiffs.

DATED: JAMAICA, NEW YORK
SEPTEMBER 15, 2020



KAREEM R. VESSUP ESQ.